

Commission of Inquiry Act, 1969

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Commission of Inquiry Act, 2026

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Amending Acts

1. Commission of Inquiry (First Amendment) Act, 2050 2050.12.29
2. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 2066.10.7
3. Some Nepal Acts Amendment Act, 2072 2072.11.13
4. Some Nepal Acts Amendment to Make Compatible with the Constitution of Nepal Act, 2075 2075.11.19

Act No. 17 of the year 2026

An Act Made to Provide for the Constitution of a Commission of Inquiry and Other Matters Relating Thereto

Preamble: Whereas, it is expedient to provide for the constitution of Commissions of Inquiry for the investigation of matters of public importance and for the powers of such Commission,

Now, therefore, His Majesty King Mahendra Bir Bikram Shah Deva has, with the advice and consent of the National Panchayat, enacted this Act. 1. Short Title, Extent and Commencement: (1) This Act may be called the "Commission of Inquiry Act, 2026."

(2) It shall extend to the whole of Nepal deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066..

(3) It shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Commission" means a Commission constituted under Section 3 deleted by the First Amendment..

(b) "Prescribed" or "as prescribed" means prescribed or as prescribed by the rules made under this Act.

(c) "Evidence" includes local inspection. 3. Constitution of Commission: Amended by the First Amendment.

(1) The Government of Nepal may, after consultation with the Judicial Council, depute the Chief Justice or a Judge of the Supreme Court for any work mentioned in the proviso to sub-article (1) of Article 132 of the Constitution of Nepal, a Judge of a High Court for any work mentioned in the proviso to sub-article (1) of Article 143, and a Judge of a District Court for any work mentioned in the proviso to sub-article (1) of Article 150, and constitute a Commission.

Such Commission may consist of the Judge alone or may also include other persons, and if there is more than one member, the Judge designated by the Government of Nepal shall be the Chairperson of the Commission.

(2) If it is deemed necessary to constitute a Commission for the investigation of any matter of public importance, amended by the Some Nepal Acts Amendment to Make Compatible with the Constitution of Nepal Act, 2075. the Government of Nepal or the Provincial Government may constitute a Commission of Inquiry consisting of one or more members, and if there is more than one member, the member designated by amended by the Some Nepal Acts Amendment to Make Compatible with the Constitution of Nepal Act, 2075. the Government of Nepal or the Provincial Government shall be the Chairperson of the Commission. Added by the Some Nepal Acts Amendment to Make Compatible with the Constitution of Nepal Act, 2075.(2a) Notwithstanding anything contained in sub-section (2), the Provincial Government shall not be entitled to constitute a Commission of Inquiry on a matter for which the Government of Nepal has already constituted a Commission of Inquiry. Amended by the Some Nepal Acts Amendment to Make Compatible with the Constitution of Nepal Act, 2075.(3) The Government of Nepal shall publish a notice of the constitution of a Commission in the Nepal Gazette, and the Provincial Government shall publish a notice of the constitution of a Commission in the Provincial Gazette. 4. Functions, Duties and Powers of Commission: Amended by the Republic Strengthening and Some Nepal Laws (Amendment) Act, 2066. (1) The functions to be performed by a Commission shall be as specified in the notice relating to the constitution of the Commission. Amended by the Republic Strengthening and Some Nepal Laws (Amendment) Act, 2066. (2) The Commission shall complete its investigation within the period specified in the notice relating to the constitution of the Commission and submit a report with its opinion to amended by the Some Nepal Acts Amendment to Make Compatible with the Constitution of Nepal Act, 2075. the Government of Nepal or the Provincial Government that constituted such Commission.

Added by the First Amendment.(2a) If the Commission requests an extension of time, stating the reason for its inability to submit the report within the period specified in the notice relating to the constitution of the Commission, the necessary period may be extended.

(3) The Commission shall have all the powers of a court under the prevailing Nepal law in respect of the following matters:-

- (a) summoning and examining any person on oath before the Commission,
- (b) ordering any person to produce any document,
- (c) receiving evidence, and
- (d) requiring any government or public office or court to produce any document or a copy thereof.

(4) The Commission may fix a time limit as it deems fit for summoning any person, requiring the production of any document, or receiving evidence under sub-section (3).

(5) In addition to the powers mentioned in sub-section (3), the Commission may also exercise the following powers as necessary:-

(a) if the Commission has reason to believe that any object or document relating to the subject of investigation is with any person or in any specific place, subject to the prevailing Nepal law, to search such person or place or cause such person or place to be searched by a gazetted officer, and if found, to seize or cause to seize such object or document, or to take or cause to take a full or partial copy of such document, and

(b) to exercise other powers under the prevailing Nepal law relating to the exercise of the powers mentioned in clause (a) and sub-section (3). 5. Statement Made by Witness Before Commission Not to Be Evidence Against Him: No person shall be liable to be prosecuted or subjected to any legal proceedings in respect of any statement made by him as a witness before the Commission. Such statement shall also not be

admissible as evidence against him in any other proceeding. Provided that, if any statement made by any person before the Commission is not related to the question asked by the Commission or if it is proved that the statement was made knowingly false, nothing in this section shall be deemed to prevent the institution of a case or legal proceedings against him under the prevailing Nepal law on the basis of such statement or to use such statement as evidence against him. 6. Contempt of Commission: A Commission constituted under this Act may take proceedings for its contempt and, if contempt of the Commission is proved, may impose a fine of up to Rs. 500/-. However, if the accused tenders an apology satisfactory to the Commission, the Commission may pardon him or, if a penalty has been imposed, remit such penalty. 7.

Dissolution of Commission: Amended by the First Amendment. (1) The Commission shall stand dissolved after the submission of the report pursuant to sub-section (2) of Section 4 or after the expiry of the period specified in the notice relating to the constitution of the Commission or, if the period has been extended pursuant to sub-section (2a) of Section 4, after the expiry of such extended period. (2) Notwithstanding anything contained in sub-section (1), if a reasonable ground exists that the Commission has ceased to be necessary, amended by the Some Nepal Acts Amendment to Make Compatible with the Constitution of Nepal Act, 2075. the Commission may be dissolved at any time by publishing a notice in the Nepal Gazette in case of a Commission constituted by the Government of Nepal or in the Provincial Gazette in case of a Commission constituted by the Provincial Government, and the Commission shall be deemed to be dissolved from the date specified in such notice. 8. Procedure of Commission: Subject to this Act and the rules made under this Act, the Commission shall regulate its own procedure. Added by the First Amendment.8a. Proceedings of Commission to be Confidential: All proceedings of the Commission shall be confidential. Provided that, except for matters that would adversely affect the sovereignty, integrity or strategic importance of Nepal deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. or public peace and order or good relations between various castes, ethnic groups or communities or adversely affect relations with friendly nations, the report shall be published for public information. 9. Proceedings Not to be Invalidated: No proceedings of the Commission shall be deemed to be invalidated merely by reason of the vacancy or absence of any member of the Commission. 10. Protection for Acts Done in Good Faith: No suit or legal proceedings shall lie against the Government of Nepal, the Commission, any member of the Commission, or any person acting on the direction of the Commission for any act done or intended to be done in good faith under this Act or the rules made under this Act. 11. Members of Commission to be Deemed Public Servants: Every member of the Commission and every person appointed or authorized to work by the Commission shall be deemed to be a public servant only for the purposes of the Prevention of Corruption Act, 2049. 12.